This is for information and instruction. Do not file it.

HOW TO EXPUNGE JUVENILE RECORDS

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This packet is not legal advice. It provides general instructions on how to use these forms in your court case. It cannot and does not try to cover everything that might happen in your court case. Your use of the forms does not guarantee you will be successful in court.

How a judge handles a case can vary from county to county. **Your county may have special requirements that are not covered in these instructions.** Ask the Circuit Clerk's office if your county has local rules and, if so, where you can get a copy.

If you are not a citizen of the United States, consult with an immigration lawyer before using these forms.
Si no es ciudadano de los Estados Unidos, consulte con un abogado de inmigración antes de usar estas formas.

STEPS TO EXPUNGE JUVENILE RECORDS

1 REVIEW YOUR JUVENILE RECORDS.

Your juvenile records are your RAP (Record of Arrests and Prosecutions) sheet and court dispositions. They list the offenses you were arrested for, the offenses you were charged with, and the outcome of the cases, including any sentences you received.

Look at each arrest in your juvenile record separately to figure out if the offenses can be expunged (erased).

Complete the Case Worksheet on page 15 during this review of your records. This will help you organize the information in one place and fill out the forms.

2 FILL OUT AND FILE THE JUVENILE EXPUNGEMENT FORMS.

Fill out these forms:

- *Request to Expunge Juvenile Records*
- *Notice of Filing for Juvenile Expungement*
- *Case List for Request to Expunge Juvenile Records*
- *Order to Expunge Juvenile Records*
- *Order Denying Request to Expunge Juvenile Records*
- *Additional Juvenile Records (if needed)*
- *Additional Arresting Agencies (if needed)*
- *Change of Address (if needed)*

File your forms with the Circuit Clerk in the county where you were arrested or charged with the offense. In some counties, you may have to attach copies of your court dispositions.

If your *Request to Expunge Juvenile Records* includes criminal cases, then you may be able to file in person, by mail, or by e-filing (filing electronically). Check with your Circuit Clerk to see how to file in your county.

3 NEXT STEPS FOR JUVENILE EXPUNGEMENT.

You may have a court date. Some counties schedule a court date right away, but others will only schedule a court date if one of the agencies you listed on the *Notice of Filing for Juvenile Expungement* form objects to your *Request*.

If there is an objection, go to pages 11 and 12 for more information.

If the judge grants your *Request to Expunge Juvenile Records*, a copy of the *Order* will be sent by the Circuit Clerk to the agencies that you listed on the *Notice of Filing for Juvenile Expungement*. These agencies have 60 days from the time they receive a copy of the *Order* to expunge your records.

Laws covering these forms: 705 ILCS 405/5-915

RESOURCES

If you **cannot pay for a lawyer** and would like to speak with a lawyer, you can contact the following referrals to request legal assistance for free or at a reduced rate (based on income):

- If you live in Cook County, contact:
  Juvenile Expungement Help Desk (Legal Aid Chicago)
  Telephone: (312) 229-6072
  Website: legalaidchicago.org/get-help/court-based-help-desks

- If you live outside of Cook County**,** contact:
  Prairie State Legal Services (Northern Illinois – outside of Cook County)
  Telephone: (815) 965-2134
  Website: pslegal.org

  Land of Lincoln Legal Aid (Southern Illinois)
  Telephone: (877) 342-7891
  Website: lincolnlegal.org

EXTRA HELP WITH THE FORMS

Easy Form
Illinois Legal Aid Online has an Easy Form program that helps you complete your forms. Easy Forms ask simple questions and put your answers in the right places on the forms. At the end of the program, you can download or email your forms to e-file or print them.

Easy Forms are free to use. Visit ilao.info/jv-expungement-easy-form or scan the QR code to use the Easy Form.

IL Court Help

For more information about going to court, including how to fill out and file forms, **call or text Illinois Court Help** at 833-411-1121 or go to ilcourthelp.gov.

If there are any words or terms used in these instructions that you do not understand, please **visit Illinois Legal Aid Online** at ilao.info/glossary. You may also find more information, resources, and the location of your local legal self-help center at ilao.info/lshc-directory.

ILAO
LEGAL HELP. ANYTIME. ANYWHERE.

ARE THESE FORMS FOR ME?

You may use these forms to **erase juvenile police and court records** so it is like they never happened when:

- You have been arrested, adjudicated delinquent (like being found guilty), or had a trial for juvenile offenses, with some exceptions found below.

Do **not** use these forms if your case involves any of the following:

- Adult criminal cases, including cases where you were prosecuted as an adult even though you were a juvenile.
  - Instead, use the appropriate court forms for expungement or sealing of adult criminal records, available at ilcourts.info/expunge-forms.
- First degree murder, if you were found guilty.
- Any sex offense for which you are currently required to register on the Juvenile Sex Offender Registry.
- Minor traffic offenses or municipal ordinance violations (such as city law violations).
- Civil cases, such as an order of protection.
  - Civil cases do not appear on your criminal record and cannot be expunged.
- Out-of-state juvenile records (from a state other than Illinois).
  - If you have records in another state, you will need to expunge those records in that state.

Forms required:

- ***Request to Expunge Juvenile Records***: This form asks the judge to expunge your records.
- ***Notice of Filing for Juvenile Expungement***: This form tells the arresting agency that you are asking the court to expunge your juvenile records.
- ***Case List for Request to Expunge Juvenile Records***: This form lists all of the case numbers and law enforcement record numbers that you included in your *Request* form and in any *Additional Juvenile Records* forms you used.
- ***Order to Expunge Juvenile Records***: This form is used by the judge to say your *Request to Expunge Juvenile Records* is approved.
- ***Order Denying Request to Expunge Juvenile Records***: This form is used by the judge to say your *Request to Expunge Juvenile Records* is denied.

Forms you may need:

- ***Additional Juvenile Records****:* Use this form if you have more than 10 arrests or cases.
- ***Additional Arresting Agencies***: Use this form if you have more than 4 arresting agencies or if you were arrested in more than 4 different cities, towns, or villages.
- ***Change of Address***: Use this form if you change your mailing address or email address before your juvenile expungement request is heard by the judge.

You can find all of the statewide forms online at ilcourts.info/forms.

IMPORTANT INFORMATION

What is juvenile expungement?
Juvenile expungement is the process of asking a judge to erase your juvenile arrest and court records. After you complete the juvenile expungement process, it is as if the records never existed (with a few exceptions). Only a judge has the power to order a record expunged.

Why should I expunge my juvenile records?

- You should expunge your juvenile records to prevent other people from seeing them. A juvenile record of the arrest exists even if you never saw a judge, never went to court, or were never adjudicated delinquent (found guilty).
- The public cannot see juvenile records. However, juvenile records may be seen by law enforcement agencies, some employers, and some government agencies (usually through use of fingerprint-based background checks in applications for subsidized housing or jobs in schools, healthcare, childcare, the military, or security).

How do I know if I have a juvenile record?

- If you were arrested before your 18th birthday, check with the police department that arrested you or the court. They should be able to tell you if your arrest record is a juvenile or adult record.
- An arrest usually involves being fingerprinted.
- If you were charged with a crime in juvenile court, a juvenile court record exists.
- If you were under 18 but charged in adult criminal court, you have an adult criminal record. Juvenile expungement will not work to expunge records from adult criminal courts. For information about expunging or sealing an adult criminal record, see *How to Clear Your Criminal Record: Expungement & Sealing* at ilcourts.info/expunge-forms.

When can I begin the juvenile expungement process?

- In order to expunge juvenile records, all the juvenile court proceedings related to the arrests and cases you are seeking to expunge must be closed.
- If a judge adjudicated you delinquent (found you guilty) of a Class A misdemeanor or a felony, you must wait at least 2 years after your court case ended (including the end of any sentence such as probation).

How long will it take to expunge my juvenile record?
It will take about 120 days from the date you file the *Request* to the time when the record is expunged.

- When you file a request to expunge your record, you must wait at least 45 days before a hearing will be scheduled. It is very important that you attend your hearing. If you do not go to the hearing, a judge cannot ask you about the issues in the expungement and your *Request* could be denied or continued to another date.
- After the hearing, law enforcement agencies have 60 days to clear your juvenile record after they receive the order to expunge your record.

Are juvenile records automatically expunged?

- Some are. If you've been adjudicated delinquent (found guilty) of something that qualifies for automatic expungement, you will get notice of a court date. You do not have to attend that court date.
- For more information, go to ilao.info/jv-expungement-basics.



Even if your records are eligible for automatic expungement, you can still ask the court to expunge your record by filling out and filing the forms. Filing for expungement on your own can sometimes be faster.

Are juvenile records automatically sealed?

- Juvenile arrest and court records are automatically sealed. This means juvenile records in Illinois are confidential and cannot be seen by the public without a court order. (This is different than adult criminal records, which anyone can see.)
- However, certain government agencies and employers have access to confidential juvenile records.
- When a juvenile expungement is granted, these groups will no longer have access to your record.

How much does it cost to expunge my juvenile records?

It is free to file your forms with the Circuit Clerk, but you may be charged a fee for a copy of your RAP sheet.

What if I have been arrested or charged with a juvenile offense in more than one county in Illinois or outside of Illinois?

If you have been arrested or charged with a juvenile offense in more than one county in Illinois, you will have a juvenile record in each county. You will have to:

- Identify each county where you have a record.
- Get your juvenile arrest records from each county.
- Fill out separate expungement forms in each county.
- File separately in each county.

What if my records are related to me being a victim of human trafficking?

- If you are a victim of human trafficking and you are adjudicated delinquent (found guilty) of a crime related to your trafficking situation, you can file your *Request* after you have completed your juvenile sentence.
- You may be asked by the judge to give details about your situation and you may want to consult a lawyer before filing your forms.



STEP 1

REVIEW YOUR JUVENILE RECORDS.

What are the different types of juvenile records?

Juvenile records have 2 parts. These records include:

- **Arrest records**: List of all juvenile arrests, including the date and charge for each law enforcement agency. In general, you need to get arrest records from each law enforcement agency that arrested you.
- **Court File**: All of the records from when your case went to court, including the outcome of the case (Disposition). If your arrest did not lead to a court case, there will not be any court record for that arrest. Ask the Circuit Clerk for the county your case was filed in how to get your court file, or how to get information from your court file.

Why do I need my juvenile records before filling out the forms?

You need the information found in your juvenile records to figure out if your records can be expunged. Juvenile records list the offenses and the dates you were arrested, the charges you were arrested for, the offenses you were charged with, and the outcome of the cases including and sentences you received.

How do I view or get copies of my juvenile arrest records?

- You are entitled to view your juvenile arrest records for free. However, law enforcement agencies may charge you to make copies.
  - Take a pen and paper with you to write down any information you need.

- Many cities do not provide juvenile RAP sheets and instead will give you another document that has your juvenile arrest information.

- **For Chicago and Suburban Cook County juvenile arrests only:**
  There are 2 ways to get your juvenile records for arrests that occurred in Cook County.
  - Juvenile arrest records are available at the Juvenile Courthouse located at 1100 South Hamilton in Chicago. You can also get assistance from Legal Aid Chicago's Juvenile Expungement Help Desk. The staff can obtain copies of your juvenile records for you, do the eligibility research and paperwork, and provide free representation if you qualify for Legal Aid Chicago services.
  - If you were arrested by the Chicago Police Department, you can also order a juvenile RAP sheet from the police department instead of at the Juvenile Courthouse.
    - You can go to the CPD Headquarters to get your Chicago RAP sheet Tuesday through Thursday, 8:00am to 1:30pm:
      Chicago Police Headquarters
      3510 S. Michigan Ave., Chicago, IL 60653
      (312) 745-5508

- **For all other counties in Illinois:**
  If you have juvenile arrests that occurred outside of Cook County, take these steps to get your juvenile records.
  - Single Arresting Agency: If you have only been arrested by one agency, contact the agency that arrested you. The arresting agency **must** release information to you regarding your juvenile arrests, no matter what your age is. (705 ILCS 405/1-8(C)(0.3)). The arresting agency must provide you with the date of arrest, the charge, and the outcome of the arrest.
  - Arrests in Multiple Counties: If you were arrested in more than one county, get your criminal history information from the Illinois State Police (ISP) through the Access and Review Process. The ISP will provide a complete list of your juvenile and adult arrests and court cases in Illinois. Find conviction information request forms at isp.illinois.gov/BureauOfIdentification
    - If your ISP report does not include all your arrests, contact the agency that arrested you and the Circuit Clerk's Office to access those records.
  - You can also get a "Statewide Criminal History Transcript" from any licensed LiveScan vendor to get your transcript using your fingerprint. There will be a fee associated with this service. Find a LiveScan vendor at idfprapps.illinois.gov/licenselookup/fingerprintlist.asp

What do I look for on my juvenile record?
To figure out if the offenses on your juvenile record can be expunged, you need to look at each arrest in your juvenile record separately and determine the answers to the questions below. Look at the Sample Case Worksheets on pages 16 and 17 to see where to find this information on your juvenile records.

- **What were the charges?** The type of offense you were arrested for, such as a petty offense, Class A, B, or C misdemeanor, or felony.
- **What was the disposition?** The outcome of the case (taken to the police station/station adjustment or arrest only, SOL (Stricken Off with Leave to Reinstate), NP (Nolle Prosequi) adjudicated delinquent (guilty), supervision, adjudicated not delinquent (not guilty)), including what charge you were adjudicated delinquent for (found guilty of), if different from the arresting charge.
- **What was the sentence?** This is the time you spent on supervision, on probation, or in the Illinois Department of Juvenile Justice (for example, in a juvenile prison).

What juvenile records CAN be expunged?
- All juvenile arrests where you did not go to court.
  - This includes station adjustments, probation adjustments, pre-petition diversion programs, and arrests where the State's Attorney decided not to prosecute or charge you.
- All juvenile court cases that did not result in an adjudication of delinquency (finding of guilt).

- For example: dismissed ("thrown out") or adjudicated not delinquent (found not guilty). You can also expunge the records if the case was dismissed by Nolle Prosequi (NP) or Stricken Off with Leave to Reinstate (SOL).

- All juvenile court cases where you were sentenced to supervision and completed it successfully.
- All juvenile court cases where you were adjudicated delinquent (found guilty) of a Class B or C misdemeanor or petty offense.
- All felony and misdemeanor Class A offenses where you were adjudicated delinquent (found guilty) if it has been **at least 2 years** since your case ended (including the end of any sentence, such as probation or aftercare).
  - This does not include first degree murder and any sex offense that you still must register for on the Juvenile Sex Offender Registry. These records cannot be expunged.

What juvenile records CANNOT be expunged?

- If you were adjudicated delinquent (found guilty) of first-degree murder or any sex offense that you still must register for on the Juvenile Sex Offender Registry.
  - If you went to court for a case, the charges listed in the final outcome or disposition are what you should use to determine whether a record can be expunged. These charges may be different than the charge you were arrested for.

What if I have some records that can be expunged and some that cannot?

- You can expunge all eligible offenses on your record, even if some parts do not qualify.
- The Juvenile Court Act makes all juvenile records confidential and sealed. This means the general public cannot see your record. Even if your juvenile record has not been expunged, it is illegal for MOST employers, housing providers, and schools to deny you employment, housing, or education based solely on your juvenile record.



STEP 2

FILL OUT AND FILE THE JUVENILE EXPUNGEMENT FORMS.



To determine if you can expunge your juvenile record, complete the Case Worksheet on page 15 of this packet. Once you have completed your worksheet, you do not need to look at your juvenile record to complete the *Request* form.

How do I fill out the *Request to Expunge Juvenile Records* form?

- Use the information you entered on your Case Worksheet to fill out the table on **pages 1 and 2** of the *Request* form. The Case Worksheet is on page 15 of this instruction booklet and should be completed using your court disposition or RAP sheet.
  - **Case Number**: Enter each case number or leave blank if there is none. The Circuit Clerk may assign a case number to that arrest date when you file the *Request to Expunge.*
  - **Law Enforcement Number**: Enter each law enforcement number or leave blank if there isn't one.
  - **Arresting Agency**: Enter the name of the police or sheriff's department that arrested you.
  - **Charge**: Enter the name of the offense you were charged with, such as "retail theft" or "cannabis possession." If you were adjudicated delinquent for (found guilty of) a different charge, list that charge instead.

- **Date of Arrest**: Enter the date you were arrested listed on your court disposition or arrest record information sheet.
- **Outcome (Disposition)**: Enter the outcome of your case.

- If you have more than 10 arrests or cases:
  - Mark the checkbox on **page 2** that says "I have listed additional eligible juvenile arrests, charges, or guilty findings on the *Additional Juvenile Records* form, which I will file with this *Request*."
  - Enter the extra arrests or cases on the *Additional Juvenile Records* form. You can use more than 1 *Additional Juvenile Records* form if needed.
- In section B on page 3, depending on the types of records you have, you may be requesting expungement under subsection 1, subsection 2, or both. (705 ILCS 405/5-915(1) and 705 ILCS 405/5-915(2)).
  - Checking the box next to Subsection 1 means you were not adjudicated delinquent (found guilty), you were sentenced to supervision and completed it successfully, or were adjudicated delinquent of a Class B or C misdemeanor.
  - Checking the box next to Subsection 2 means you were adjudicated delinquent (found guilty) of a Class A misdemeanor or felony offense (this includes supervision not terminated successfully.)
  - If your record falls under subsection 2, you must wait 2 years after your juvenile case has ended before you can request expungement.

How do I fill out the *Case List for Request to Expunge Juvenile Records* form?

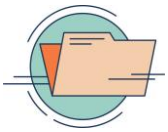
- You must enter all your law enforcement numbers and case numbers that are listed on both the *Request to Expunge Juvenile Criminal Records* and all *Additional Juvenile Records* forms you used.
  - You can use more than one *Case List for Request to Expunge Juvenile Records* form if needed.
- The *Case List* form must be filed with your *Request*.

How do I fill out the *Notice of Filing for Juvenile Expungement* form?

- Enter your information on this form where instructed.
- Find the name and address for the County State's Attorney by asking the Circuit Clerk.
- Find the address for the arresting agencies (police departments) that arrested you by contacting them.
- If you have more than 2 arresting agencies or if you were arrested in more than 2 different cities, towns, or villages, use an *Additional Notice of Filing for Juvenile Expungement* form. You may use more than 1 *Additional Notice of Filing for Juvenile Expungement* form.
- The Circuit Clerk will mail a copy of the *Notice of Filing for Juvenile Expungement,* any *Additional Notice of Filing for Juvenile Expungement,* and your *Request* form to all of the agencies that are required to get notice of your *Request*.

What do I do after I fill out the form?

- File your forms with the Circuit Clerk in the county where you were arrested or charged with the offense. In some counties, you may have to attach copies of your court dispositions.
- If your *Request to Expunge Juvenile Records* includes criminal cases, then you may be able to file in person, by mail, or by e-filing (filing electronically). Check with your Circuit Clerk to see how to file in your county.



HOW TO FILE THE FORMS

- Before you file your forms, contact your Circuit Clerk's office and ask how your county files expungement requests.
- To find the phone number for your Circuit Clerk, visit ilcourts.info/clerks. You can also check your Circuit Clerk's website for more information.



COSTS AND FEES

There is no fee to file a juvenile expungement request in the state of Illinois. However, there may be fees for other supporting documents you need for your case, including copies.

If you cannot afford to pay the fees, you can ask the court to provide them for free or at a reduced cost by filing an *Application for Waiver of Court Fees.*

This is a separate form you can find at ilcourts.info/fee-waiver-forms.



STEP 3

NEXT STEPS FOR JUVENILE EXPUNGEMENT.

What do I need to do before my court date to prepare?

- You may need to go to court for a court date in front of a judge. Some counties schedule a court date right away, but others will only schedule a court date if one of the agencies you listed on the *Notice of Filing for Juvenile Expungement* form objects to your *Request*.
- If you need to schedule the court date, ask the Circuit Clerk how to do so. The Circuit Clerk may schedule the court date or you may have to speak with other court staff.
- You may be able to submit documentation in support of your request before the court date, like character letters from family or employers, job training certificates, academic degrees, and a personal statement. This documentation should express your need for expungement.
    - Every court has a different process for submitting this documentation. Contact your Circuit Clerk for information on how to submit this before your court date: ilcourts.info/clerks.

What if I receive an objection to getting my juvenile records getting expunged?

- An objection is not a denial of your *Request to Expunge Juvenile Records*. An objection is a way for the agencies that you notified to raise concerns about your *Request*.
- The police departments and prosecutors that you listed on the *Notice of Filing for Juvenile Expungement* form get a chance to object to your request to expunge your juvenile records.
- They have 45 days to file a written objection with the court. If they object, it means they have a reason that they do not want your records to be expunged. Even if they object, the judge may still grant your expungement.

How will I know if someone objects to my *Request to Expunge Juvenile Records?*

- The Illinois State Police, the arresting agency, or State's Attorney (Prosecutor) may file a written objection with the court in advance (and you will receive a copy) or they may object in person at the hearing.
- You have a legal right to understand and respond to their objection. An objection does not always mean the judge will deny your *Request*.
- The judge will consider the objection and your response when deciding if your juvenile records will be expunged. You must go to the court hearing in order to respond to any objections.

Attend Court.



Make sure you know how to attend your court date.

Your court date could be in person, by phone, or by video. If it is by phone or video, it is called a "Remote Appearance." Call the Circuit Clerk or visit their website for more information. To find the phone number for your Circuit Clerk, visit ilcourts.info/clerks.

Your court date could be in person, by phone or by video.

- If your court date is in person:
  - Get to the courthouse at least 30 minutes early so you have enough time to get through security.
  - Go to the courtroom number listed on your court form.
  - If your forms do not have a courtroom number, look for a list of cases at the courthouse or ask someone at the Circuit Clerk's office.
  - Check in with the courtroom staff and wait for your name and case number to be called.
- If your court date is by phone or video:
  - Make sure to have the call-in or login information for your court date and make sure your technology is working.
  - Follow the instructions on the court notice you received. Call the Circuit Clerk or Circuit Court or visit their websites for specific technology instructions.
  - Start trying to log-in to your courtroom at least 15 minutes before the start time in case you have any problems with technology.
  - Follow these tips to attend court by phone or video: ilcourts.info/remote-resources.
- When your case is called, introduce yourself to the judge. If you are attending by phone or video remember to unmute yourself.
- You must attend the court date if one is scheduled. If you do not go to your court date, your case could be dismissed.
- Bring these items with you to court:
  - Photo I.D.
  - Stamped copies of your forms.
  - *Order to Expunge Juvenile Records.*
  - *Order Denying Request to Expunge Juvenile Records.*
  - Notes or documents detailing your employment and educational history.
  - Other papers related to your *Request* (like evidence of completion of a treatment program, letters of recommendation, proof of education, or degrees, etc.).

How do I present my case to the judge?

- Representatives from the agencies that you listed on your *Notice of Filing for Juvenile Expungement* form may be at your hearing and could ask you questions about your case.
- If you find out before your court date that there is an objection, you can:
  - Seek legal advice before your court date if you have questions.
  - Tell your story clearly and honestly. Explain why you are asking for your record to be expunged.

- Pay attention to the reason for the objection. They may object because they think you are not legally eligible or they have some other type of concern about things like the nature of the case, how recent it was, or how extensive your record is.
  - Talk about how a denial would affect you. For example, explain if it could cost you a job, housing, or education opportunity.
  - Answer any questions the judge has.
- If you find out at your court date that there is an objection, you can:
  - Ask for the reason for the objection.
  - Ask for a written copy of the objection.
  - Ask for a continuance so you can prepare a response to the objection and seek legal advice.
- The judge makes the final decision. The judge is allowed under the law to use their discretion when deciding whether or not to expunge your juvenile records.

How does the court decide to approve or deny my request for juvenile expungement?
The judge will:

- Determine if you are eligible under the law.
- Determine if there is any missing information about an arrest or case.
- Review the other factors they are allowed to consider, including:
  - Any reason why the State, the Arresting Agencies, or Chief Legal Officers want to keep your records from being expunged.
  - Your age, and your juvenile and criminal records.
  - The period of time between your arrest or court case and the filing of the request to expunge your records.
  - The specific negative results you may suffer if the *Request* is denied.

How will I find out if my *Request to Expunge Juvenile Records* is approved or denied?
At your court date, the judge will tell you if your *Request* is approved or denied. Ask the Circuit Clerk, State's Attorney, or judge for a copy of the signed expungement order.

What if I move or change my email address before my juvenile expungement request is heard by a judge?
Use the *Change of Address* form immediately to tell the Circuit Clerk of your new mailing or email addresses. If you do not tell the court your new addresses, you may not receive necessary paperwork.

Information For After Your Court Date.

If my *Request* is approved, how long will I have to wait before my juvenile records are expunged?

- A copy of the *Order* will be sent by the Circuit Clerk to the Illinois State Police (ISP) and the police departments and prosecutors that you listed on the *Notice of Filing for Juvenile Expungement*.
  - These agencies have **60 days** from the time they receive a copy of the *Order* to expunge your records.

What do I do with the *Orders* approving or denying my *Request to Expunge Juvenile Records* after I get it?
It is very important that you keep a copy of the *Order* that you received from the Circuit Clerk in a safe place. Once your arrests or cases are expunged, the court no longer has a court record for you and it may be very difficult or impossible to get another copy of the *Order*.

If my records are expunged, do I have to tell employers or potential employers about it?
Generally no, you do not have to tell employers about expunged juvenile records. However, there might be employers, such as the military or federal government, that will need to know. It is important to keep paperwork related to your case and the expungement just in case they ask for it.

How will I know when my juvenile records have been expunged?

- The Illinois State Police will send you a letter stating that they have expunged your juvenile records. Until you receive this letter from the ISP, your records have not yet been expunged.
- If you have not heard back in 55 days, call them and ask if they have expunged your records yet.
- Also call your arresting agency because they may not send you a letter.

Can anyone find out about my juvenile records once they have been expunged?

These agencies may be able to see expunged juvenile records:

- Immigration officials, law enforcement, and national security agencies, like the military, if you apply for a job with them.

What if my juvenile record does not qualify for expungement?

- Always double-check your eligibility with a lawyer if you think you are not eligible to expunge your juvenile record.
- Juvenile records are different than adult criminal records. Even if you cannot expunge your juvenile record, your entire juvenile record is still automatically sealed and cannot be seen by the general public.
- If you are asked about criminal convictions on a job application, and you only have juvenile records, you can answer "no" to the question. Convictions only apply to adult criminal records.
  - If an employer finds out that you expunged any juvenile records, they cannot use that against you or they will violate the Juvenile Expungement Act 705 ILCS 405/5-915.
  - If you are denied a job or a promotion based on your juvenile record, request a copy of the background check from the employer and contact a lawyer for help.

What can I do if my *Request to Expunge Juvenile Records* is denied even though I'm eligible for expungement?

- You have several options. Some of these options are time sensitive so you should act right away. If you are able to speak to a lawyer you should do so as soon as possible.

  Your options are:

  - **Ask for Reconsideration:** You can ask the judge to look at your *Request* again by filing a Motion for Reconsideration with the Circuit Clerk within 60 days from the day you received a copy of the *Order* denying your *Request*.
  - **Appeal:** You can ask the appellate court to review the judge's decision to deny your expungement.

    NOTE: the Appellate Court decision may become part of the public record, so even if you are ultimately successful in your expungement of your criminal records, the appellate case (including information on your expunged juvenile record) will not be expunged.

    - File a *Notice of Appeal* with the Circuit Clerk within 30 days from the day the *Order* was entered denying your *Request;* OR
    - If you file a Motion for Reconsideration and it is denied, file a *Notice of Appeal* within 30 days from the day the *Order* was entered denying your Motion for Reconsideration.
    - You will have to pay a filing fee to the appellate court unless you have a fee waiver from the appellate court. You will have to pay a fee for the Circuit Clerk to prepare the *Request for Preparation of Record on Appeal*. Give the Circuit Clerk a copy of your *Order for Waiver of Court Fees* (if you have one) and pay your portion of the fees. You can find more information about *Request for Preparation of Record on Appeal* at ilcourts.info/forms.
  - **File a Petition for Executive Clemency:** You can file a petition with the Prisoner Review Board requesting the Governor grant a pardon authorizing expungement. For more information, go to state.il.us/prb.

APPENDIX: CASE WORKSHEET

Use this worksheet to organize information about your juvenile records in one place. Organizing your information can help you complete the forms. **Do not file this worksheet with the court.**

- You can find all the information you need to fill in the worksheet on your court records, RAP sheets, and information from the Illinois State Police. Below are some samples to help you locate the information you need.

How do I complete the Case Worksheet?

Using the information on your court record and arrest record, fill in your Case Worksheet with the following information for each case:

- **Case Number**: enter the case number listed or leave blank if you were arrested but it never resulted in a court case. The Circuit Clerk must provide your case numbers to you for free.
- **Law Enforcement Record Number**: enter the law enforcement record number if you have one. See instructions below for more information on finding your law enforcement record number. You might see "CB" or "DCN" next to the number.
- **Arresting Agency**: enter the name of the police or sheriff's department that arrested you.
- **Charges**: enter all offenses you were charged with for each arrest or case number, for example "drug possession" and "possession of paraphernalia".
- **Date of Arrest**: enter the date you were arrested that is listed on your court disposition or RAP sheet.
- **Outcome**: check how your case ended:
  - no petition for delinquency filed (arrest only),
  - adjudicated delinquent (guilty) of felony or class A misdemeanor,
  - adjudicated delinquent (guilty) of class B or C misdemeanor,
  - adjudicated not delinquent (found not guilty),
  - case dismissed (thrown out),
  - arrest only/adjustment, or
  - I was given supervision and successfully completed it.
  - I was given supervision and did not successfully complete it.

	Case Number	Law Enforcement Record Number *(if any)*	Arresting Agency	Charges *(list all charges for each case number or law enforcement number)*	Date of Arrest	Outcome (Disposition)
1.						
2.						
3.						
4.						
5.						
6.						
7.						
8.						
9.						
10.						

SAMPLE CASE WORKSHEET

The samples below give two examples of how to fill out your own case worksheet.

This page includes examples of how to use a **Cook County court disposition** and a **Chicago Police RAP sheet** to fill out your case worksheet.

Sample Case Worksheet:

	Case Number	Law Enforcement Record Number	Arresting Agency	Charges	Date of Arrest	Outcome (Disposition)
1.	05-JD-244	05456347	CPD	Battery	11/4/2005	Found Not Guilty

Sample Cook County Court Disposition

IN THE CIRCUIT COURT OF COOK COUNTY, I — **Case Number**

PEOPLE OF THE STATE OF ILLINOIS

VS — **NUMBER 05-JD-244**

JOHN DOE

CERTIFIED STATEMENT OF CONVICTION / DISPOSITION

I, MARIYANA T. SPYROPOULOS, Clerk of the Circuit Court of Cook County, Illinois, and keeper of the records and seal thereof do hereby certify that the electronic records of the Circuit Court of Cook County show:

The State's Attorney of Cook County/Local Prosecutor has filed a complaint with the Clerk of the Circuit Court.

Charging the above named defendant with: — **Charges**

750-5/12-3-A-1 M A **BATTERY**

The following disposition(s) was/were rendered before the Honorable Judge

11/05/2005 BOND SET BY RULE OF COURT 11/17/2005 3154

Smith, Gerald T.

11/17/2005 BOND FORFEITURE B001

Smith, Gerald T.

12/13/2005 MOTION TO VACATE BOND FORF.

Smith, Gerald T.

12/13/2005 BOND FORFEITURE VACATED

Smith, Gerald T.

12/13/2005 **Found Not Guilty** C001

Smith, Gerald T

Outcome (Disposition)

Sample Chicago Police RAP Sheet

CHICAGO POLICE DEPARTMENT
3510 S. Michigan Avenue/Chicago, IL 60653
Identification Section
Criminal History Report

DOE, JOHN
IR # 978380 — MALE
SID # — WHITE
FBI # — 5'10"
IDOC # — EYES: BRO

Current Arrest Information: — HAIR: BLK

Date of Birth: 2-OCT-1974
Age: 39 years
Place of Birth: CHICAGO, IL
SSN:
Driver's License #: Q4838171920282782
Driver's Lic. State: ILLINOIS
Scars, Marks & Tattoos:
Criminal Justice Su…s: 1 (1 Misdemeanor)

Date of Arrest

ARREST

Arrest Name: DOE, JOHN — Date: **11/4/2005** — Holding Facility: NORRIDGE

Date of Birth: 2-OCT-1974 — Arrest Address: 145 W. State St. Chicago IL

DCN or CB: 05456347 — Residence: 230 E… IL

Arresting Agency

Officer: JONES — Officer Badge #: 53 — Arresting Agency: **CPD**

Law Enforcement Record Number

Cou	Statute	Arrest Charge Description
[1]	720 ILCS 5/12-3	Battery

COURT CHARGES/ DISPOSITION

Statute	Charge	Class	Case#
720 ILCS 5/12-3	BATTERY	M	05121978901
Disposition: SOL		*Disposition Date:*	13-DEC-2005
Sentence:		*Sentence Date:*	

This page includes examples of how to use a **court disposition (outside of Cook County)** and an **Illinois State Police RAP sheet.**

Sample Case Worksheet:

	Case Number	Law Enforcement Record Number	Arresting Agency	Charges	Date of Arrest	Outcome (Disposition)
1	09-JD-117	P129393	Ford County Sheriff's Office	Unlawful possession of drug paraphernalia	10/23/2009	Supervision

Sample County Court Disposition (Not Cook County)

IN THE JUVENILE COURT OF THE ELEVENTH JUDICIAL CIRCUIT
FORD COUNTY, ILLINOIS

Case Number

PEOPLE OF THE STATE OF ILLINOIS,)
vs) No. 09- JD-117
Jane Doe)
Defendant)

JUDGMENT AND SENTENCE
OF PRO ERVISION/CONDITIONAL DISCHARGE

Charges

The case con ng, Defendant (having pled guilty of) the offense(s) o

Unlawful Possession of Drug Paraphernalia
Class A Misdemeanor

and a Presentence Report having been (waived) and hearing in aggravation and mitigation (waived); The Court finds there is a factual basis for a factual basis for a finding of guilty. The Court further finds that imprisonment in the Illinois Department of Corrections is not necessary for the protection of the public, and the following sentence does not deprecate the seriousness of the Defendant's conduct and is consistent with the ends of justice.

ACCORDINGLY IT IS THE ORDER OF THIS COURT, that the Defendant is placed on (probation)
for a period of 12 (months) subject-to the following conditions:

THE DEFENDANT SHALL:

GS (X) 1. not violate any criminal statute of any jurisdiction;

. . .

GS (X) 8. pay a fine of $ 750 ; court costs of . . . and Probation fees in the amount of $ 25 per month;

. . .

This case is continued to 12/17/10 except for review or remission hearings.

ENTER: 12/17 , 20 09 Gerald T. Smith
JUDGE

TERMINATION DATE: 12/17 , 20 10

Sample Illinois State Police RAP Sheet

ILLINOIS STATE POLICE
Bureau of Identification
260 North Chicago Street
Joliet, IL 60432-4075

Criminal History Of: Doe, Jane (Last Known Name) State Identification #: IL 9876543
Conviction Status: MISDEMEANOR CONVICTION
Custodial Status:

Alias Name(s)	Date of Birth
DOE, JANEY	01/13/1981

SUBJECT IDENTIFICATION DATA

Sex: FEMALE
Race: WHITE
Height: 5'4" **Date Reported:** 10/23/2009 **FBI#:**
Weight: 105 **Date Reported:** 10/23/2009 **Chicago IR#:**
Eyes: BLUE
Hair: BLACK
Skin MEDIUM

Sca	Place of Birth	DL #	DL State
TAT	ILLINOIS	K12345678	

Law Enforcement Record Number

Date of Arrest

CRIMINAL HISTORY DATA

DCN: P129393 **Date of Arrest: 10/23/2009**
Name: DOE, JANE **Date of Birth:** 01/13/1981
Residence: 123 N. Main St. Melvin, IL

Arresting Agency: FORD COUNTY SHERIFF'S OFFICE
Agency Case Number: 1234567 **Officer Badge Number:** 008

Arresting Agency

Arrest Charges

Count	Statute Citation	Literal Description	Class
1	720 ILCS 600/3.5	Poss. Of Drug Paraphernalia	M

State's Attorney Section
Filing Decision: FILED **Decision Date:** 10/23/2009

Count	Statute Citation	Literal Description	Class
1	720 ILCS 600/3.5	Poss. Of Drug Paraphernalia	M

Agency Name: FORD COUNTY STATE'S ATTORNEY

Outcome (Disposition)

Cou	ion		
Cou	ion	Literal Description	Class
1	/3.5	Poss. Of Drug Paraphernalia	M

Disposition: SUPERVISION **Disposition Date: 12/17/2010**

EXAMPLE OF HOW TO FILL OUT A REQUEST TO EXPUNGE JUVENILE RECORDS

This is an example of how to fill out the *Request to Expunge Juvenile Records* form.

This example is **fake**. **You should fill out your forms with your own information.**

REQUEST TO EXPUNGE JUVENILE RECORDS

IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: County Name
County Where You Are Filing the Case

REQUEST OF: Jane Doe
Your First, Middle, and Last Name

Janey Doe
Other Names Used In These Cases

01/13/1900
Date Of Birth

IR Number (if available)

Case Number
(if the Circuit Clerk assigns a new number)

When you have **finished** filling out this form, fill out the ***Case List for Request to Expunge Juvenile Records*** form with all of the case numbers and law enforcement numbers you are asking to be expunged. The *Case List* form **must be filed** at the same time you file this *Request* form.

You do **not** have to pay to file requests to expunge juvenile records (705 ILCS 405/5-915(8)).

If you are not a citizen of the United States, consult with an immigration lawyer before using these forms.
Si no es ciudadano de los Estados Unidos, consulte con un abogado de inmigración antes de usar estas formas.

EXAMPLE

A. REQUEST TO EXPUNGE JUVENILE RECORDS

In the table below, for each eligible arrest or case on your juvenile record enter the:

- ***Case number**, if there is one. If an arrest did not result in a court case, the Circuit Clerk may assign it a case number. If the Circuit Clerk assigns a case number, enter it on the case number line.*
- ***Law enforcement record number**, if there is one. You might see "CB" or "DCN" next to the number.*
- ***Arresting agency**, which is the police or sheriff's department that arrested you.*
- ***Charges** you were arrested for or adjudicated delinquent for (found guilty of).*
- ***Date of the arrest**.*
- ***Outcome**, or **disposition**, that matches the outcome of your case. Use the shortened version of the outcome from the Outcomes Abbreviations box on the bottom of page **2**.*

*You can read How to Expunge Juvenile Records to make sure all of your cases can be erased by expunging your record. For help filling out this table, see pages **15-17** of the instructions.*

I ask the court to expunge all my eligible juvenile law enforcement and court records from the Circuit Clerk's Office, the Illinois State Police, and the agency that arrested me. I was arrested on the dates and for the charges listed below:

	Case Number	Law Enforcement Record Number *(if any)*	Arresting Agency	Charges *(List all charges for each case number or law enforcement number)*	Date of Arrest	Outcome (Disposition) *(for example, D)*
1	09-JD-117	P129393	Arresting Agency Name	Unlawful possession of drug paraphernalia	10/23/2209	S
2	CB# 12345	CB# 12345	Arresting Agency Name	Theft, etc.	01/08/2210	A
3						
4						
5						
6						
7						
8						
9						
10						

For multiple charges, use "etc." when you run out of room.

Outcome abbreviations are listed in the chart below.

EXAMPLE

Outcome Abbreviations

A	**Arrest** without court case filed/station or probation adjustment/pre-petition diversion	**ND**	Adjudicated **not delinquent** (found not guilty)
S	Given **supervision** and the court decided it was completed **successfully**	**BC**	Adjudicated delinquent for (guilty of) **class B or C misdemeanor** (includes supervision not terminated successfully)
FA	Adjudicated delinquent for (guilty of) **felony or class A misdemeanor** (includes supervision not terminated successfully)	**D**	Case **dismissed** (thrown out)

If all of your eligible charges will not fit on this form, list the rest on the Additional Juvenile Records form and file it with this Request. You can fill out as many Additional Juvenile Records forms that you need.

☐ I have listed additional eligible juvenile arrests, charges, or guilty findings on the *Additional Juvenile Records* form, which I will file with this *Request*.

In **B, check the box** that applies to the circumstances of the arrests and/or cases you listed in the table above. If you listed multiple cases above, you may check both boxes if both apply.

B. EXPUNGEMENT ELIGIBILITY

1. ☑ I am eligible for expungement under **Subsection 1** (705 ILCS 405/5-915(1)) because all juvenile proceedings related to the arrests and cases I am seeking to expunge are closed **and AT LEAST ONE of the following statements is true:**

This box is checked because two of these statements apply to the arrests on the chart above.

- I was arrested as a juvenile but never appeared before a judge.

For example, you might see the words "station adjustment" or "released without charging" on your criminal records. This also may mean that the State's Attorney did not file formal charges against you or your case was diverted out of court.

My juvenile court case did **not** result in an adjudication of delinquency (finding of guilt).

For example, you were adjudicated not delinquent (found not guilty) or the case was dismissed (sometimes marked as Nolle Prosequi (NP) or Stricken Off with Leave to Reinstate (SOL)).

- I was sentenced to supervision and completed it successfully.
- I was adjudicated delinquent (found guilty) of a Class B or C Misdemeanor or petty offense (includes supervision not terminated successfully).

2. ☐ I am eligible for expungement under **Subsection 2** (705 ILCS 405/5-915(2)) because all juvenile proceedings related to the arrests and cases I am seeking to expunge are closed and **ALL of the following statements are true:**

- I was adjudicated delinquent (found guilty) of a Class A misdemeanor or felony offense (includes supervision not terminated successfully).
- At least 2 years have passed since all of my juvenile cases ended. This includes juvenile probation, serving time in the Illinois Department of Juvenile Justice, and parole (IDJJ Aftercare).
- None of the cases I am trying to expunge are cases where I was found guilty of first-degree murder or any offense that requires me to currently register under the Sex Offender Registration Act. These cannot be expunged.

EXAMPLE

SIGN

Under 735 ILCS 5/1-109, my signature certifies and means that:

1) The statements in this document are true and correct, or if any are based on information and belief, I believe they are true, and 2) I understand that knowingly making a false statement on this form is perjury and has penalties provided by law.

If you are filling out this form online, sign your name by typing it. If you are filling out this form by hand, sign and print your name.

Signature Jane Doe Print Name Jane Doe

☑ **I am completing this form for myself**

Phone Number (999)111-2222 Email (if you have one) jane.doe@examplemail.com

Address 1234 Placeholder Drive Faketown IL 99999
Street, Apt. #, City, State, Zip Code

Be sure to **check your email every day** so you do not miss important information, court dates, or documents from other parties.

☐ **I am a lawyer completing this form on behalf of a client** (Client name): _____

Lawyer Name _____ Attorney Number _____

Lawyer Phone Number _____ Law Firm _____

Lawyer Email _____

Address _____
Street, Apt. #, City, State, Zip Code

STOP **Do not fill in the information below. This section is for official use only.**

State's Attorney/Prosecutor/ISP/Arresting Agency/Chief Local Legal Officer:

_____ Received on: _____
Signature *Date*

EXAMPLE

WHAT'S NEXT

NEXT STEPS FOR PERSON FILLING OUT THIS FORM:

When you have finished filling out this form, **fill out the *Case List for Request to Expunge Juvenile Records* next**. The *Case List* form **must** be filed at the same time you file this *Request* form.

After you fill out all of your forms, file them with the Circuit Court Clerk's office.
Find your Circuit Clerk here: ilcourts.info/clerks.

If you move or change your email address, you need to file a *Change of Address* form at ilcourts.info/expunge-address.

Learn more about each step in the process in the instructions:
ilcourts.info/how-to-expunge-juvenile